

Justice

Michael Sandel

LazyLearn track, Michael Sandel moral and political philosophy lecture series
Lecture notes organized by [LazyingArt LLC](#) with [Video2Book](#)

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Chapter 1

The Moral Side of Murder

These notes follow Michael Sandel’s opening lecture in *Justice*, in the LazyLearn track curated by LazyingArt LLC. We begin exactly where the lecture begins: not with doctrine, but with a story that forces judgment before vocabulary. From there the argument unfolds by controlled variation. One structural feature changes, then another; a simple numerical maxim first appears to guide us, then breaks apart; only after that pressure has been felt does Sandel step back to name consequentialist and categorical moral reasoning, widen the frame to the purpose of political philosophy, and return after a pause to Bentham, utility, and the real-life stress test of *The Queen v. Dudley and Stephens*. The formulas below are editorial shorthand for the lecture’s numerical backbone. They are not board equations, and they are used only to make explicit the one-versus-many structure that the lecture itself keeps before us.

1.1 Opening the Course Through the Trolley Problem

Sandel’s first move is deliberate. He tells us that the course is about justice, and then, instead of defining justice, he begins with a runaway trolley. The trolley is hurtling down the track. Five workers stand ahead. The brakes do not work. At the last moment we notice a side track with one worker on it, and we discover that the steering still functions. The first question is immediate: what is the right thing to do?

The class is polled before any theory is named. Only a handful would continue straight. The overwhelming majority would turn. If we introduce a compact notation for the outcomes, the structure of the case may be written as

$$a_{\text{turn}} : (N_{\text{die}}, N_{\text{live}}) = (1, 5), \tag{1.1}$$

$$a_{\text{straight}} : (N_{\text{die}}, N_{\text{live}}) = (5, 1). \tag{1.2}$$

The point of the poll is not to collect opinions. It is to force reasons into the open. Sandel immediately asks the majority why they would turn. The dominant answer is plain: it cannot be right to kill five when one could be killed instead. A student then generalizes the same style of reasoning to another tragic emergency, invoking the passengers on Flight 93. The guiding thought is the same: if fewer can be killed rather than more, that seems the better course.

But Sandel does not leave the matter there. He asks those in the minority to speak. Their objection is not numerical but moral in kind: perhaps this same logic, detached from limits, is the logic that

can justify horrors on a larger scale. The lecture has therefore already produced two things that matter for the rest of the chapter. First, a simple maxim has emerged:

$$\text{better that one should die so that five should live.} \quad (1.3)$$

Second, a worry has appeared alongside it: perhaps there are some ways of saving the many that are already morally corrupted, even before we total up the results.

1.2 Trolley, Fat Man, and the Breakdown of a Simple Maxim

Sandel's next move is exact. He does not abandon the one-versus-five structure. He changes a single feature. This time we are not the driver but an onlooker standing on a bridge above the track. The trolley again rushes toward five workers. Standing beside us is a large man whose body, if pushed onto the track, would stop the trolley and save the five.

If we look only at the immediate arithmetic, the structure has not changed:

$$\begin{aligned} a_{\text{push}} : (N_{\text{die}}, N_{\text{live}}) &= (1, 5), \\ a_{\text{refrain}} : (N_{\text{die}}, N_{\text{live}}) &= (5, 1). \end{aligned} \quad (1.4)$$

Yet the class no longer reacts as it did in the driver's case. Most of those willing to turn the trolley are unwilling to push the man. The lecture now acquires its first real engine: comparative case variation.

Worked example. To isolate the force of the simple maxim, we may introduce a deliberately crude proxy for pure outcome-counting:

$$U_{\text{proxy}}(a) = N_{\text{live}} - N_{\text{die}}. \quad (1.6)$$

Then the driver's case and the bridge case are numerically indistinguishable:

$$U_{\text{proxy}}(a_{\text{turn}}) = 5 - 1 = 4, \quad U_{\text{proxy}}(a_{\text{straight}}) = 1 - 5 = -4, \quad (1.7)$$

$$U_{\text{proxy}}(a_{\text{push}}) = 5 - 1 = 4, \quad U_{\text{proxy}}(a_{\text{refrain}}) = 1 - 5 = -4. \quad (1.8)$$

Proposition 1.1. *A rule that depends only on the immediate headcount $(N_{\text{die}}, N_{\text{live}})$ cannot explain the difference between turning the trolley and pushing the man.*

Proof. In both cases the intervention produces $(1, 5)$, while the failure to intervene produces $(5, 1)$. Any rule sensitive only to those ordered pairs must therefore rank the two interventions alike. Since the class does not rank them alike, some feature other than the immediate numerical outcome must matter. $\square$

That is precisely what Sandel draws out in the discussion. Students try several distinctions. Perhaps pushing is more active. Perhaps the man on the bridge was not already part of the danger. Perhaps steering a threat differs from using a person as the very means by which the rescue is accomplished. Sandel then makes the problem harder, not easier, by introducing a trap-door variation: suppose the man could be dropped by turning a wheel. Even then the class still recoils. The tactile push is not the whole story.

1.2.1 Question & Answer

Question. Why does turning the trolley seem permissible while pushing the fat man does not?

Answer. The lecture does not settle the matter with a single formula, but it does clarify the terrain. The difference cannot lie in arithmetic, because the arithmetic has been held fixed. Nor can it lie simply in physical contact, because the trap-door variation preserves the sense that something has gone wrong even when no hands are used. What survives the exchange is a more general thought: our judgments are tracking not only outcomes but also the kind of act being performed. In the driver's case we redirect a threat already in motion. In the bridge case we make an otherwise uninvolved person the instrument of rescue. That clarification is not the final theory, but it is enough to move the lecture forward. The simple maxim has been exposed as too simple.

1.3 Doctor, Triage, and Transplant

The lecture now leaves tracks and bridges but keeps the same numerical pressure. In an emergency room six patients arrive after a terrible accident. Five are moderately injured; one is severely injured. The doctor can spend the day treating the one, in which case the five will die, or treat the five, in which case the one will die. Here most of the class again follows the numbers.

The second medical case is more disturbing. A transplant surgeon has five patients, each needing a different organ. No donors are available. A healthy man in the next room came only for a checkup. If his organs are taken, he dies and the five live.

In the same ordered-pair notation, the two medical cases may be set out as

$$a_{\text{treat one}} : (N_{\text{die}}, N_{\text{live}}) = (5, 1), \quad a_{\text{treat five}} : (N_{\text{die}}, N_{\text{live}}) = (1, 5), \quad (1.9)$$

$$a_{\text{do not harvest}} : (N_{\text{die}}, N_{\text{live}}) = (5, 1), \quad a_{\text{harvest}} : (N_{\text{die}}, N_{\text{live}}) = (1, 5). \quad (1.10)$$

Once again the numerical structure remains constant while the moral response changes. Most are willing to let the one severely injured patient die in order to save the five. Very few are willing to kill the healthy patient for organs.

This sequence matters for two reasons. First, it shows Sandel varying the case without letting us forget the arithmetic. Second, it shows that the arithmetic is no longer doing all the explanatory work. The lecture is not yet arguing for a full theory. It is building a pattern of judgments that any adequate theory will have to explain.

There is even a brief moment of comic resistance. One student proposes a way around the transplant case: take the first of the five dying patients and use that patient's remaining healthy organs to save the other four. Sandel praises the ingenuity and immediately rejects it, because it destroys the philosophical point. The point of the case is not to optimize organ logistics. It is to hold the one-versus-five structure steady while changing the character of the act.

1.4 Two Moral Logics Emerge

At this stage Sandel performs the lecture's first explicit consolidation. He steps back from the stories and asks what kinds of reasons have already begun to emerge from the discussion.

Definition 1.2. Consequentialist moral reasoning judges an act by its consequences, that is, by the state of the world the act brings about.

Definition 1.3. Categorical moral reasoning holds that some acts are wrong in themselves, regardless of the aggregate consequences they produce.

The first of these captures the thought that drove the majority in the original trolley case: if five can live rather than die, that fact seems decisive. The lecture's shorthand for this temptation is simple and memorable: better that five should live, even if one must die. The second captures the hesitation that emerged in the bridge and transplant cases: perhaps there are acts that remain wrong even when their outcome looks numerically superior.

Sandel does not present these as abstract textbook categories dropped onto the cases from above. He presents them as names for patterns already visible in the room. That is important to the lecture's rhythm. The concepts are earned before they are labeled.

This is also the point at which Bentham and Kant first appear on the horizon. Bentham stands for the most influential form of consequentialist reasoning, Kant for one of the most influential forms of categorical reasoning. The chapter should preserve that order: first the cases, then the unstable intuitions, then the names.

1.5 Why Philosophy Matters, and Why It Disturbs

From here the lecture widens dramatically. Sandel looks beyond the opening cases to the course as a whole. The syllabus includes Aristotle, Locke, Kant, Mill, and others; but it also includes contemporary disputes over equality, affirmative action, speech, marriage, military service, and public life more broadly. The books are not there to sit at a distance from politics. The politics are there to show what is at stake in the books.

Then comes the warning. Philosophy does not work by adding new information to a stable picture. It works by making the familiar strange. That is why the trolley and doctor cases are not disposable amusements. They are miniature demonstrations of the larger enterprise. We take something that feels obvious in one setting, move it slightly, and discover that we are no longer sure what we believe.

Sandel emphasizes two risks.

- There is a personal risk. Once a moral assumption has been genuinely unsettled, it cannot simply be returned to its old innocence.
- There is a political risk. Philosophical reflection may initially make us less comfortable with convention, less secure in inherited judgments, and therefore less effective in a straightforward practical sense.

This is where the lecture's tone changes. The course is not being sold as a quick improvement in citizenship. Sandel even entertains the possibility that philosophy may first make us worse citizens before it makes us better ones, because it distances us from settled assumptions. He reaches back to Socrates and Callicles to dramatize the point: there has always been a complaint that philosophy takes us away from active life, into argument, hesitation, and unsettling scrutiny.

The natural temptation in response is skepticism. Perhaps these questions never end because there are no answers to be had. Sandel rejects that move. The persistence of moral disagreement is not

proof that reflection is useless. It is evidence that the questions are unavoidable. We live some answer to them every day, whether or not we have put that answer into words. The goal of the course is therefore not calm consensus but the awakening of what Sandel calls the restlessness of reason.

1.6 Bentham, Utility, and the Return to Method

After this pause the lecture deliberately rewinds. Sandel reminds the audience what the first half has already done, both methodologically and substantively. The method is worth stating carefully because it governs the whole course.

1. We begin with judgments about particular cases.
2. We articulate the reasons or principles that seem to lie behind those judgments.
3. We confront those principles with new cases.
4. We revise judgments and principles in light of one another, under the pressure to bring them into alignment.

Only after this recap does Bentham enter as a systematic thinker. Sandel now gives explicit philosophical form to the outcome-based reasoning that has already been visible in the cases. Bentham's central claim is that the right thing to do, individually or collectively, is to maximize utility. What is utility? Sandel's answer comes in paired verbal formulas:

$$\text{utility} = \text{pleasure} - \text{pain}, \quad (1.11)$$

$$= \text{happiness} - \text{suffering}. \quad (1.12)$$

If we introduce a minimal notation to compress this idea, we may write

$$U(a) = H(a) - S(a), \quad (1.13)$$

where $H(a)$ is the happiness resulting from act a and $S(a)$ is the suffering it produces. Then Bentham's directive becomes

$$a^* = \arg \max_a U(a). \quad (1.14)$$

Remark 1.4. These formulas are cautious transcript-based reconstructions. No board equation survives for this lecture, and Sandel states Bentham's view in words rather than symbols. The notation is included only to make the lecture's structure more explicit.

Bentham's route to the principle matters. He begins from the claim that human beings are governed by two sovereign masters, pain and pleasure. Since we seek pleasure and avoid pain, morality and legislation should be organized around the balance of the two. In slogan form, utilitarianism becomes the greatest good for the greatest number. If one wants a compact symbolic rendering of that slogan, one may write

$$a^* = \arg \max_a \sum_i u_i(a), \quad (1.15)$$

but the lecture does not depend on any elaborate calculus. What matters is the guiding thought: the best act is the act that brings about the best aggregate condition.

1.7 Dudley and Stevens: Necessity, Lottery, and Consent

With Bentham's principle now named, Sandel turns to a real legal case: *The Queen v. Dudley and Stephens*. This shift from hypothetical puzzle to actual disaster is a major hinge in the lecture. The pattern is familiar, but the emotional temperature is higher. Four men survive a shipwreck in a lifeboat. Their food is nearly gone. There is no fresh water. Richard Parker, the cabin boy, grows ill after drinking sea water and appears close to death. Dudley proposes a lottery. Brooks refuses. No lottery is held. The next day Dudley kills Parker, and the survivors sustain themselves on his body until rescue comes.

Before taking up the arguments, it is useful to set the major sacrificial cases from the lecture alongside one another.

Case	Intervention	$(N_{\text{die}}, N_{\text{live}})$	Dominant reaction
Trolley driver	a_{turn}	(1, 5)	Turn
Bridge onlooker	a_{push}	(1, 5)	Do not push
Emergency triage	$a_{\text{treat five}}$	(1, 5)	Treat the five
Transplant surgeon	a_{harvest}	(1, 5)	Do not harvest
Dudley-Stevens defense	$a_{\text{kill Parker}}$	(1, 3)	Majority condemn

The defense is necessity. Better that one should die so that three could survive. In the most compressed numerical form, the defense proposes

$$a_{\text{kill Parker}} : (N_{\text{die}}, N_{\text{live}}) = (1, 3). \quad (1.16)$$

But here the lecture becomes more subtle than a simple headcount. Unlike the trolley case, the alternative outcome is not known in advance. Rescue may come soon or not at all. The defense therefore depends on a conjecture about consequences:

$$U(a_{\text{kill Parker}}) \stackrel{?}{>} U(a_{\text{wait}}). \quad (1.17)$$

Some students then broaden the utilitarian frame in explicitly Benthamite fashion. It is not merely three lives against one. The three survivors have families and dependents waiting back home; Parker is an orphan. If welfare is what matters, then perhaps the benefit of preserving the three is larger than the bare arithmetic first suggests.

Sandel, however, does not let this utilitarian case stand unopposed. He polls the room as though we were the jury, while bracketing the legal question and focusing on moral permissibility. A sizable majority condemns the killing. He then lets the minority speak first. Necessity, desperation, survival, and even later productive social contribution are all invoked in Parker's place. Only then does he turn to the prosecution. Some object that no human being has the authority to decide another's fate in this way. Others maintain, more categorically, that murder remains murder.

1.7.1 Question & Answer

Question. Would a lottery, or Parker's consent, make the killing morally permissible?

Answer. This is where the lecture becomes especially careful. Sandel does not treat lottery and consent as identical. He lets them appear one after the other, and the difference matters.

1. **Necessity.** The first defense is the strongest consequentialist one: in desperate circumstances, one death may preserve several lives, and perhaps that is enough.
2. **Fair procedure.** The next thought is that perhaps the real wrong in the actual case lies in the unilateral choice. A lottery would at least count everyone equally and prevent one party from deciding that his own life matters more.
3. **Consent.** The strongest modifier is then introduced by the class itself: if Parker freely agreed, would the moral status of the act change because the sacrifice became, in some sense, his own?

The lecture's answer is again not a final theorem but a clarified map of positions. Some students are moved by lottery or consent. They think the moral problem lies largely in the absence of consultation or procedure. Others are not moved. They insist that consent under such circumstances may be coerced, that a fair procedure can still generate an unjust act, and that even if self-sacrifice is admirable, it does not follow that someone else may perform the killing. The categorical objection therefore survives every attempt to soften the case.

Sandel's final step is to gather the discussion into three precise philosophical questions.

1. If killing is categorically wrong, is that because persons have rights that cannot be reduced to welfare?
2. Why should agreement to a fair procedure justify the outcome of that procedure?
3. What moral work does consent do, and why does it seem capable of transforming an act that would otherwise be wrong?

The lecture ends by sharpening these questions rather than by resolving them. That is exactly right. Dudley and Stephens is not merely one more example. It is the point at which necessity, utility, fairness, rights, and consent are all forced into the same frame.

1.8 Summary

This first lecture establishes both the method and the ambition of the course. We begin with cases, not doctrines. We are polled before we are instructed. We then watch a simple one-versus-many maxim travel from case to case until it no longer explains our own judgments. Out of that instability emerge two rival moral logics: consequentialist reasoning, which looks to outcomes, and categorical reasoning, which holds that some acts are wrong in themselves. The course then pauses to explain why philosophy matters, returns with a more explicit account of Bentham's utilitarianism, and finally tests that account against the lifeboat case of Dudley and Stephens. The result is not a settled answer. It is a better question: whether aggregate welfare can justify sacrifice, whether fair procedure can license a deadly outcome, and what consent can and cannot do in moral life.

Chapter 2

Putting a Price Tag on Life

This chapter follows Michael Sandel’s second lecture in Justice, presented here in companion-note form for the LazyLearn track and curated by LazyingArt LLC. We return from Dudley and Stephens to Bentham because Sandel wants to do more than revisit a dramatic case. He wants to know whether the impulse to count lives, pains, and benefits can be turned into a general moral principle. The lecture therefore begins with a clean rule, pushes that rule into public policy, and then tests whether the rule survives its own consequences.

2.1 Returning to Bentham from the Lifeboat Case

Sandel opens with a recap: last time we argued about the lifeboat case, the case of cannibalism at sea, and now we turn back to Bentham. The order matters. Utilitarianism is not introduced as an abstract doctrine dropped from the sky. It is introduced as a way of making systematic the sort of reasoning to which the lifeboat case had already tempted us.

Sandel’s brief sketch of Bentham’s life serves a purpose. Bentham goes to Oxford at twelve, to London at fifteen, to law at sixteen, and then gives his life not to legal practice but to jurisprudence and moral philosophy. The biographical sketch is there to mark the ambition of the doctrine: this is meant to be a general principle of morals and politics.

Definition 2.1. Bentham’s principle of utility says that the highest principle of morality, whether personal or political, is to maximize the general welfare, or the collective happiness, or the balance of pleasure over pain.

Sandel states the principle in prose. For compactness we may write

$$U = H - S, \tag{2.1}$$

where H denotes happiness or pleasure and S denotes suffering or pain. This notation is editorial shorthand, but it tracks the lecture closely.

Bentham’s next move is to extend the same logic from one person to the community. A community, he says, is the sum of the individuals who comprise it. If we compress that idea into a single formula, we obtain

$$U_{\text{community}} = \sum_{i=1}^N u_i. \tag{2.2}$$

Once the problem is written in this way, the political rule becomes immediate:

$$a^* = \arg \max_a U(a). \quad (2.3)$$

The right act, the right policy, and the right law are the ones that maximize utility.

This is the first mathematical spine of the lecture. It is elementary in form, but it is powerful in implication. If we can identify the relevant benefits and costs, and if those benefits and costs can be placed on a common scale, then legislation begins to look like a problem of comparison and optimization.

2.2 Cost-Benefit Analysis as Utilitarianism in Practice

Sandel's first major pivot is from principle to mechanism. Utilitarianism, he says, often appears in contemporary life under the name of cost-benefit analysis. The language changes, but the form does not. We list the benefits, list the costs, and compare the totals.

For a policy a , the operational rule is

$$\text{Net}(a) = \text{Benefits}(a) - \text{Costs}(a). \quad (2.4)$$

At this stage the logic seems almost irresistible. What could be more reasonable than counting up the benefits of a policy and subtracting its burdens?

The Czech smoking case is Sandel's first stress test. Philip Morris commissioned a cost-benefit study of smoking in the Czech Republic, and the study concluded that the government gains by having citizens smoke. Sandel then walks us through the ledger. On one side lie the negative effects: increased health-care costs for smoking-related disease. On the other side lie tax revenues, pension savings, savings in health care when people die earlier, and even savings in housing costs for the elderly. In a compact ledger form,

$$\begin{aligned} \text{Net}_{\text{Czech smoking}} &= \text{tax revenue} + \text{health-care savings from early death} \\ &\quad + \text{pension savings} + \text{housing savings} - \text{smoking-related health costs} \\ &= \$147 \text{ million.} \end{aligned} \quad (2.5)$$

At the individual level, the same reasoning yields

$$\text{savings per premature death} > \$1200. \quad (2.6)$$

The arithmetic is not presented as a parody. Sandel lets it run in its own terms. That is what gives the example its force. Early death now enters the calculation as a fiscal gain. The lecture's moral pressure does not come from any algebraic mistake. It comes from the spectacle of a coherent ledger whose coherence seems itself offensive.

At once Sandel anticipates the utilitarian reply. Perhaps this is an unfair test. Philip Morris was pilloried in the press and apologized. A defender of utilitarianism may say that the calculation omitted what matters most: the value of the life lost, the loss to the person, and the loss to the family. If those terms were added to the ledger, perhaps the result would reverse. Sandel accepts that this is the natural reply, and then moves to a case designed precisely to test it.

2.3 Ford Pinto, Cell Phones, and the Price of Life

The Ford Pinto case is Sandel's harder test. Here, unlike in the Czech example, the company does assign a dollar value to life and injury. So the question becomes sharper: if the life term is entered explicitly, does that save cost-benefit reasoning, or does it expose its problem more clearly?

Ford knew that the Pinto's rear fuel tank was vulnerable in collisions and considered adding a protective shield. The safety improvement was estimated at \$11 per car across 12.5 million cars and trucks:

$$C_{\text{Pinto safety}} = (\$11) \cdot (12.5 \times 10^6) \approx \$137 \text{ million.} \quad (2.7)$$

The transcript's arithmetic is approximate here, as Sandel reports \$137 million rather than \$137.5 million, but the structure is clear.

The benefit side of the memo included expected deaths, expected injuries, and the value of vehicles that would otherwise be destroyed. Because the injury coefficient is garbled in the transcript, it is safest to keep that term symbolic:

$$B_{\text{Pinto safety}} = 180(\$200,000) + 180I + 2000(\$700) \approx \$49.5 \text{ million,} \quad (2.8)$$

where I denotes the memo's injury valuation. The decision then follows from the sign of the difference:

$$\begin{aligned} \Delta_{\text{Pinto}} &= B_{\text{Pinto safety}} - C_{\text{Pinto safety}} \\ &\approx \$49.5 \text{ million} - \$137 \text{ million} \\ &\approx -\$87.5 \text{ million.} \end{aligned} \quad (2.9)$$

So the device is not installed.

This is one of the lecture's strongest numerical examples because the arithmetic is so plain. If benefits are lower than costs, the improvement is rejected. What horrifies the jurors is not that the memo forgot to count life. It counted life explicitly.

Sandel then widens the frame. The same form appears in policy debates over cell-phone use while driving. A study is said to find roughly 2000 annual deaths from such use; later, in the live exchange, Sandel rounds the figure up to 2300. Against these deaths are placed the economic and practical gains from using travel time for business, coordination, and ordinary convenience. The resulting structure is again the same:

$$\text{Net}_{\text{cell phone}} \approx \text{convenience and economic benefit} - N_{\text{deaths}} V_{\text{life}}. \quad (2.10)$$

The point is not that the lecture settles the cell-phone question. The point is that once V_{life} is introduced, the issue appears to fit the same calculus as the Pinto memo.

2.3.1 Question & Answer

Can human life be given a dollar value without distorting the moral problem?

Sandel's classroom exchange produces two answers. One answer says that the problem is numerical. If Ford valued a death at \$200,000, then the figure was far too low. On this view the calculus itself is sound; it merely needs a more realistic price, whether \$1 million, \$2 million, or some other figure.

The other answer says that the problem lies deeper. Julia's response captures it sharply: the mistake is not that the number is too low, but that human life should not be handled by this monetary device at all. What is lost is not only money or earnings, but a person and a set of human relationships, and those losses may be misdescribed the moment they are entered as a price.

The lecture does not yet decide between these two replies. What it does is more important structurally. It forces the issue from a technical dispute about inputs to a philosophical dispute about the form of the calculation itself. That shift opens the way to Sandel's two objections to Bentham.

2.4 Two Objections to Bentham: Rights and Commensurability

Sandel now steps back from the cases and asks what, exactly, the objections are. He does not want the lecture to remain a collection of appalled reactions. He wants the pressure points named cleanly.

The first objection concerns rights, especially the rights of minorities and individuals. Anna voices this worry in the classroom: the fact that a person belongs to the smaller number does not mean that his claims matter less. Youngda replies in a perfectly Benthamite way that each person's preference still counts; the difficulty is that the larger number outweighs the smaller. Sandel then presses the point with examples. The boy in the lifeboat had as much right to live as the others. A suspected terrorist may possess rights even if torturing him might save thousands. And the Roman arena case states the difficulty in the starkest way: a few victims suffer horribly, a crowd exults, and pure aggregation threatens to justify the spectacle if the crowd is large enough.

The second objection concerns commensurability. Even if we agreed to aggregate, can all goods, losses, and human concerns be translated into a single scale? Thorndike's survey is introduced as an attempt to show that they can. Respondents assigned dollar amounts to unlike experiences: pulling a tooth, cutting off a toe, eating a worm, living the rest of one's life on a farm in Kansas, choking a stray cat. The resulting ranking is exactly the kind of thing Sandel wants us to inspect:

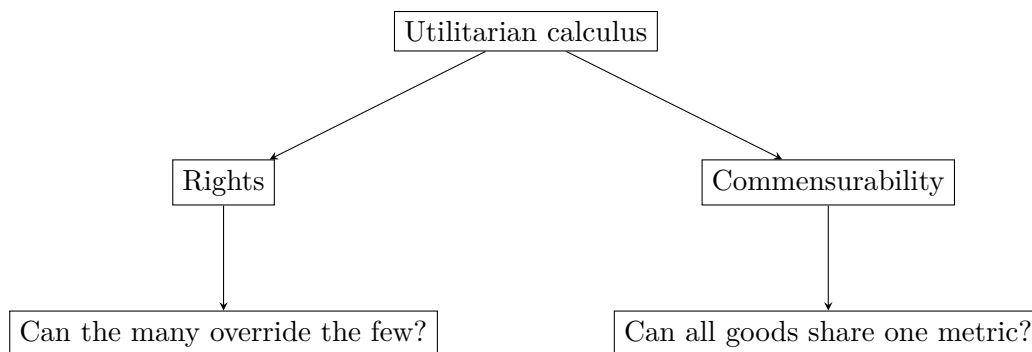
$$V(\text{Kansas}) = \$300,000 > V(\text{eat earthworm}) = \$100,000 > V(\text{pull tooth}) = \$4,500. \quad (2.11)$$

The ranking is not interesting because it is silly. It is interesting because the silliness may reveal something true: perhaps these goods and harms are being misshapen by the very act of being forced into one scale.

Sandel's St. Anne's story makes the same point with more social texture. Traditional objections to overnight male guests at a women's college were translated into utilitarian housekeeping costs: baths, hot water, mattresses, and finally a fee of 50 pence per night. The headline that followed showed at once how translation into a cost schedule can destroy the meaning of what is being discussed. A question of moral convention had become a price tag.

At this point Sandel explicitly consolidates the argument. We are looking at two different objections: one about whether utilitarianism respects rights, and the other about whether all values are commensurable at all.

The diagram is only a map, but it captures an important pedagogical beat. The lecture has moved from examples to a formal branching of the problem.



2.5 Bentham on Quantity, Not Quality

Sandel's next pivot is subtle. Up to now we have asked whether we may add all goods together. He now asks a different question: even if we could add them, why should we count every preference without asking whether it is a good preference or a bad one?

Bentham's answer is that we should refuse such qualitative rankings. What matters are the intensity and duration of pleasure and pain. The slogan Sandel gives is the famous one: the quantity of pleasure being equal, pushpin is as good as poetry. In a deliberately schematic shorthand, we may write

$$\text{Qty}(p_1) = \text{Qty}(p_2) \implies p_1 \sim p_2. \quad (2.12)$$

The notation is only a compression of Bentham's claim. If the quantity is the same, the ranking is the same.

Sandel is careful to show why this view is attractive. It looks egalitarian. It refuses to let one class of people declare another class's pleasures intrinsically inferior. Mozart versus Madonna, ballet versus bowling: who is to judge? Bentham's refusal to judge carries a democratic appeal.

But the lecture now has enough material on the table to challenge that flatness. The Roman crowd's delight in blood sport does not look like just another pleasure of equal standing. Here the objection is not only that Christians are wronged. It is also that the crowd's pleasure seems base and degrading. So the question becomes unavoidable: can a utilitarian distinguish higher from lower pleasures without abandoning utilitarianism? That question is the bridge to Mill.

2.6 Mill's Repair: Higher Pleasures and the Competent Judge

Mill enters, in Sandel's presentation, as a reformer from within. The brief biography is not ornamental. It marks Mill's inheritance and his burden. James Mill, Bentham's disciple, gives his son an extreme education: Greek at three, Latin at eight, Roman law at ten. Then comes the breakdown, the depression, and eventually Harriet Taylor, under whose influence Mill tries to humanize utilitarianism.

Mill's first move is not to reject utility. On the contrary, he affirms it emphatically. The desirable, he says, is what people do in fact desire. So the repair must work from within the field of actual preference, not by appealing to a mysterious moral faculty outside it.

Definition 2.2. Mill's competent-judge test says that of two pleasures, the higher pleasure is the one that all or almost all who have experienced both decidedly prefer, and prefer independently of

Question posed	Dominant response	Philosophical use
Most liked	The Simpsons	immediate preference
Highest experience	Shakespeare	qualitative ranking

any external feeling of moral obligation.

A compact way to summarize the structure is

$$\text{Higher}(p_1, p_2) \iff \text{those acquainted with both } p_1 \text{ and } p_2 \text{ decidedly prefer } p_1. \quad (2.13)$$

The significance of the definition lies in what it excludes. Mill does not permit us to step outside actual preference. He does, however, restrict the relevant preferences to those of people who know both sides of the comparison.

2.6.1 Question & Answer

How can a utilitarian distinguish higher from lower pleasures without leaving utilitarian premises?

Mill's answer is that we do not leave the premises at all. We remain with desire and preference. But we do not consult just any desire. We ask those who have experienced both alternatives which one they decidedly prefer.

This is why Mill can say that some pleasures are higher without appealing to an independent moral yardstick. The higher pleasure is not the one pronounced noble by some external authority. It is the one preferred by those competent to compare.

The repair is ingenious, but it is also delicate. The class of competent judges is typically educated, cultivated, and able to appreciate what crude preference might miss. So the distinction between recording preferences and educating preferences begins to narrow. Sandel does not suppress this tension. He prepares to test it in public.

2.7 Shakespeare, The Simpsons, Rights, and the Limits of the Repair

Sandel's test is the classroom experiment with Hamlet, Fear Factor, and The Simpsons. Its force depends on the two-stage structure. First the room is asked what it likes most. Then it is asked what it regards as the higher or worthier experience. If those two questions yield different answers, Mill has gained an important foothold.

This is the live form of Mill's claim:

$$\text{Preferred} \neq \text{Higher}. \quad (2.14)$$

The room's immediate taste and its reflective ranking do not coincide. That gap is exactly what Bentham's flat metric has trouble recognizing.

The subsequent discussion deepens the point. One student suggests that Shakespeare seems higher only because culture teaches us to say so. Another replies that if one had to live for the rest of one's life with one body of material, the richer work would sustain a deeper mental life. Joe's answer is especially important for the lecture's rhythm: what we like in the moment is not necessarily what we would choose for a life.

The rat example pushes the same contrast into a simpler biological frame. A rat can stimulate its own brain and experience intense pleasure to the point of death. That shows intensity; it does not show the superiority of the life. Mill's point is that human beings who know both sides of the comparison would prefer a life of higher faculties, even if it includes dissatisfaction.

At this point Sandel broadens the repair from pleasures to rights. Mill's claim is that justice is not a foreign body within utilitarianism. It is the chief and most sacred part of morality because, regarded collectively, it stands higher in the scale of social utility. If we want a symbolic shorthand for the order Mill is trying to assert, we may write

$$\text{Justice and rights} \succ \text{other moral requirements.} \quad (2.15)$$

The relation is ordinal, not numerical. Mill is not giving us a meter for justice. He is claiming that, once long-run human interests are considered, rights deserve a privileged place within the utilitarian scheme.

This is where the lecture deliberately stops short of closure. Has Mill repaired utilitarianism, or has he smuggled in non-utilitarian standards while still using the vocabulary of utility? Sandel refuses to settle the matter prematurely. The unresolved question is part of the intellectual work of the lecture.

The Bentham coda then returns us to the founder. Bentham's preserved body, his wax head, his insistence that even a dead philosopher should be useful: these details are funny, but not merely funny. They show a thinker who remained faithful to his principle in life and in death. The story closes the lecture in the right way. Bentham is not dismissed. He is left before us as both rigorous and unsettling.

2.8 Summary

We began with Bentham's simple rule that the right act or policy maximizes utility. We then watched that rule become operational in cost-benefit analysis, where benefits are added, costs are subtracted, and decisions follow from the sign of the result. The Czech smoking study and the Ford Pinto memo showed how far that arithmetic can reach once life itself receives a monetary term.

From there the lecture extracted two objections. The first was about rights: perhaps the good of the many cannot justify the sacrifice of the few. The second was about commensurability: perhaps not all goods and harms belong on one common scale in the first place. Bentham's own answer was to count quantity rather than quality. Mill's answer was to preserve utility while distinguishing higher pleasures and giving justice a privileged place in the long run. Whether that answer truly remains inside utilitarianism is the question Sandel leaves suspended, and it is the right question with which to end.

Chapter 3

Free to Choose

We do not begin this lecture with a fresh definition of libertarianism. We begin where Michael Sandel begins: with unfinished business from John Stuart Mill. These companion notes follow that order closely, because the turn to libertarianism is not a change of topic but the next move once Mill's utilitarian repair begins to wobble. The lecture first reopens the problem of higher pleasures, then presses Mill's defense of rights, then turns to a stronger theory of rights, and only after that asks what such a theory would require of the state.

Remark 3.1. No validated mathematical frame survives for this lecture. The displayed formulas below are therefore transcript-backed shorthand or cautious editorial reconstructions of structures that Sandel states in prose.

3.1 From Mill's Repair to the Need for Stronger Rights

Sandel opens with a recap rather than a reset. Mill had tried to answer Bentham's critics by showing that utilitarianism can distinguish higher from lower pleasures. The classroom experiment with *The Simpsons* and Shakespeare, however, produced a result that exposes the difficulty at once: many students reported preferring the one while still judging the other to be higher or worthier. The pressure point can be written compactly as

$$\text{Preferred} \neq \text{Worthier.} \tag{3.1}$$

This is not Mill's own formula. It is simply a clean way to mark the dilemma Sandel wants us to feel before the lecture moves on.

From there the lecture turns to Mill's defense of justice in Chapter V of *Utilitarianism*. Mill wants to say that rights are worthy of special respect, indeed that justice is the most sacred and most binding part of morality. Sandel grants, for the sake of argument, the stable core of Mill's long-run reply:

$$\text{Respect rights} \implies \text{better social consequences in the long run.} \tag{3.2}$$

The lecture immediately asks us not to settle too quickly for that answer. Sandel separates two objections that are easy to blur together.

The first objection is about hard cases. If violating a right in some exceptional case really would make people better off even in the long run, would utilitarianism then permit the violation? If so, rights remain contingent on outcome.

The second objection is deeper. Even if Mill's long-run calculus always worked as advertised, would that be the right reason to respect persons? The organ-transplant case is introduced precisely to force this question. The doctor may refrain from taking the healthy patient's organs because public trust would collapse and the long-run consequences would be bad. But Sandel asks whether there is not also, and more fundamentally, a reason of a different kind.

We can display the contrast Sandel is drawing in the organ case as follows:

$$\text{Do not use the patient} \implies \text{avoid bad long-run consequences,} \quad (3.3)$$

$$\text{Do not use the patient} \implies \text{respect the person as an individual.} \quad (3.4)$$

The lecture's question is whether the first line can ever be enough by itself.

3.1.1 Question & Answer

Even if respecting rights maximizes welfare in the long run, is that the right reason to respect persons?

Sandel's answer is that it is not enough. A rule may work well and still fail to name the proper moral reason. The point of the organ-transplant case is not only that utilitarianism may break down in difficult cases; it is that a merely instrumental defense of rights seems to miss what is morally weighty about rights in the first place. Once that gap opens, the lecture needs a stronger account of rights than Mill can comfortably provide from within utilitarianism.

3.2 Libertarianism as a Strong Theory of Rights

The transition now becomes explicit. If Mill's defense of rights seems to lean on ideas such as dignity or respect that are not themselves utilitarian, then we should ask whether there are stronger theories of rights that put those ideas first. Sandel says, in effect: today we turn to one of them.

The defining claim is that individuals matter not merely as containers of utility, not merely as locations where satisfactions can be stored and summed, but as separate beings with separate lives. That is why strong theories of rights resist the utilitarian habit of thinking about law and justice by aggregation alone.

Libertarianism enters at exactly this point. It takes liberty to be the fundamental right. Because we are separate persons, we are not available for whatever use society might find advantageous. In schematic form, the lecture pushes toward the following claim:

$$\text{SelfOwnership}(p) \implies \text{strong side-constraints on using } p. \quad (3.5)$$

Again, this notation is editorial. Sandel states the idea verbally. But the implication is faithful to the role the idea plays in the lecture.

This is also the setting for Nozick's formulation that rights are so strong and far-reaching that they raise the question of what, if anything, the state may do. The lecture does not leave the point at the level of slogan. As soon as liberty is introduced, Sandel asks what follows institutionally.

3.3 The Minimal State and Its Three Prohibitions

Sandel's next move is crisp and numbered. If liberty is the basic right, then the state is barred from three kinds of action that modern governments commonly take to be legitimate.

1. Paternalist legislation: laws that protect people from themselves.
2. Morals legislation: laws that enforce virtue or give expression to a collective moral code.
3. Redistribution: taxation or policy that transfers income or wealth from the rich to the poor.

The lecture develops these in order. Seatbelt and motorcycle-helmet laws are the first examples, because they make the paternalist form of coercion easy to see. Laws against consensual sexual intimacy are then introduced as the paradigm of morals legislation. Redistribution comes third and receives the most attention, because it exposes the sharpest dispute about coercion, property, and the use of persons.

A compact editorial summary is

$$S_{\text{forbidden}} = \{\text{paternalism, morals legislation, redistribution}\}. \quad (3.6)$$

By contrast, the minimal state is allowed only a narrow range of functions:

$$S_{\text{min}} = \{\text{defense, police, courts, contract/property enforcement}\}. \quad (3.7)$$

These set-valued expressions are note-writer's shorthand, not lecture notation. What matters is the shape of the doctrine as Sandel unfolds it: the state may protect against force and fraud, but it may not coerce us for our own good, for the sake of virtue, or for distributive equality.

Having drawn those boundaries, the lecture concentrates on the third prohibition. Sandel wants not merely to announce that redistribution is wrong on libertarian grounds, but to show what has to be true for that conclusion to follow.

3.4 Redistribution, Historical Justice, and the Entitlement View

At this stage Sandel makes the issue concrete by asking about the distribution of wealth in the United States. The country is highly unequal. Is that fact enough to tell us whether the distribution is just or unjust? The libertarian answer is no. We cannot read justice directly off the pattern.

Let D denote a distribution of holdings and $J(D)$ its justice-status. Then the lecture's historical test can be summarized as

$$J(D) \text{ depends on the history of acquisition and transfer, not on pattern alone.} \quad (3.8)$$

That sentence is almost the heart of the entitlement view. To judge a distribution we need to know how it arose.

Sandel states two principles. First comes justice in acquisition: were the original holdings obtained fairly, or were land, factories, goods, or other productive assets stolen or seized? Second comes justice in transfer: did later holdings arise through free consent, through buying, selling, trading, and exchange on the market?

A compact reconstruction is

$$J(D) = J_{\text{acq}} \wedge J_{\text{tr}}, \quad (3.9)$$

where J_{acq} records justice in acquisition and J_{tr} justice in transfer. The formula is editorial, but it captures the lecture's logic without adding machinery the lecture does not use.

How the test works. The entitlement view proceeds step by step.

1. Begin with an observed distribution D .
2. Refuse to judge D from its pattern alone.
3. Ask whether the relevant initial holdings were acquired justly.
4. Ask whether later holdings arose through voluntary transfer.
5. If both conditions are met, treat the resulting distribution as just.
6. If either condition fails, the resulting distribution is unjust.

3.4.1 Question & Answer

Can we judge a distribution by the end-state alone, or only by the history of acquisition and transfer?

The lecture's answer is that pattern is not enough. Libertarian justice is historical. A highly unequal distribution may be just if it arose from just acquisition and free exchange. A more equal distribution may still be unjust if it was produced by coercion, confiscation, or fraud. Sandel needs this historical turn before he can make redistribution the live issue, because otherwise the argument would be swallowed immediately by egalitarian intuition.

3.5 Bill Gates, Michael Jordan, and the First Round of Objections

Sandel now says, in effect, let us make it concrete. He turns from the abstract structure of entitlement to two examples that give the lecture its numerical backbone: Bill Gates and Michael Jordan.

The Gates example is built to activate the utilitarian impulse. Gates is presented as so rich that ordinary scales stop working. Sandel uses the lecture-era Lincoln Bedroom joke to dramatize magnitude: Gates could afford to stay there every night for the next 66,000 years. He then turns to effective earning rate. If we spread Gates's accumulated wealth over long working days since the founding of Microsoft, the lecture says his rate of pay comes out to more than \$150 per second. Hence the joke that if he saw a \$100 bill on the street, it would not be worth stopping to pick it up.

That is exactly the setup Sandel wants. Once one person is imagined as scarcely noticing the loss, utilitarianism pushes strongly toward redistribution for urgent needs at the bottom. The argument is not subtle:

1. A very small loss to Gates produces negligible pain.
2. The same amount, distributed to those in serious need, produces large gains in welfare.
3. Therefore a utilitarian would redistribute at once.

Sandel immediately checks that conclusion by returning to the libertarian premise: if the holdings are justly his, then the gain in aggregate welfare does not by itself settle the moral question.

The Jordan example makes the issue even sharper because the arithmetic is explicit:

$$31 \text{ million} + 47 \text{ million} = 78 \text{ million.} \quad (3.10)$$

That is, \$31 million in salary plus \$47 million in endorsements. Sandel then asks us to imagine taking roughly one third of that total for food, health care, housing, and education for the poor. The implied arithmetic is

$$\frac{1}{3} \cdot 78 \text{ million} = 26 \text{ million.} \quad (3.11)$$

Worked example. The lecture's contrast can be written in four short steps.

1. Begin with Jordan's annual income: 78 million dollars.
2. Take one third: 26 million dollars.
3. A utilitarian says: Jordan scarcely notices the loss, while the poor gain substantially.
4. A libertarian says: if Jordan is entitled to the income, the gain in welfare does not cancel the wrong of coercive taking.

Now the classroom pressure begins. The first objection is that wealth like Jordan's is not simply the product of isolated effort. The successful, one student argues, have received a larger gift from society and therefore owe more back. A second objection worries that absent some redistribution, there can be no genuine equality of opportunity for those who begin far behind.

The libertarian side answers first with analogy. Joe's skateboard example asks us to imagine one person with a collection everyone else suddenly wants. If the others enter his house and take them, that is unjust even if the result is more equal. Sandel presses Joe: does a 33% tax on Jordan for good causes amount to theft? Joe answers yes, though he allows that in an extreme case an injustice may have to be condoned.

The reply to Joe then changes the register again. It is said that this is not like taking 99 of 100 skateboards; it is more like taking a portion of a surplus so large that its owner cannot meaningfully use it all. And if the state never redistributes, some citizens may be trapped so low that equal opportunity becomes hollow. The lecture leaves this first round unresolved, because Sandel wants to show that Nozick's sharper argument does not stop at theft.

3.6 From Taxation to Forced Labor to Self-Possession

At this point Sandel makes the decisive escalation. Joe had called redistribution theft. Nozick, we are told, goes one step further. Taxation does not merely take an external object. It takes earnings, and earnings are the fruits of labor. The argument therefore unfolds in a chain:

$$\text{taxation of earnings} \rightarrow \text{taking fruits of labor} \quad (3.12)$$

$$\rightarrow \text{claim on labor} \quad (3.13)$$

$$\rightarrow \text{forced labor} \quad (3.14)$$

$$\rightarrow \text{slavery.} \quad (3.15)$$

The lecture insists on the intermediate steps. If the state may claim the product of my labor, then it has, in effect, asserted a title to some portion of the labor that produced that product. If it has a title to some portion of my labor, then it is laying claim to some portion of my life, time, and effort. That is why Nozick says taxation for redistribution is morally equivalent to forced labor.

We can state the structure more explicitly as a derivation.

1. Taxation takes part of a person's earnings.
2. Earnings are the fruits of labor.
3. Taking the fruits of labor is morally akin to claiming part of the labor itself.
4. Claiming part of a person's labor is forced labor.
5. Forced labor means that another party is, in part, owner of the person.
6. Partial ownership of the person is slavery, or a denial of self-possession.

That is the point at which Sandel says the stakes are very high. Once the argument is stated in this form, redistribution can no longer be treated as a merely technical dispute about fiscal policy. The dispute has become a dispute about whether the political community may own any share in the person.

The hidden premise is then brought to the surface:

$$\text{SelfOwnership}(p) \implies \text{the state has no title to the labor of } p. \quad (3.16)$$

This is also why Sandel deliberately links the argument back to the organ-transplant case. If we own ourselves, then the patient in the transplant case is not available for social use; and for the same reason, persons are not available for paternalist regulation, for morals legislation, or for redistributive taking in the name of the common good. One principle is meant to govern all of these cases.

3.6.1 Question & Answer

Is taxation for redistribution really morally equivalent to forced labor?

Sandel does not ask the question in order to silence objection. He asks it in order to locate the exact point of dispute. If we reject the libertarian conclusion, we must break into the chain somewhere: perhaps by denying that taking earnings is equivalent to taking labor, perhaps by denying that claims on labor amount to ownership, or perhaps by questioning the deeper premise of self-possession itself. The lecture's achievement here is to force the disagreement into clear form.

3.7 Democracy, the Minimal State Revisited, and the Turn to Locke

The lecture now enters its functional reprise. Sandel says, in effect, that before returning to redistribution he wants to say one more word about the minimal state. This reset matters, because it shows that libertarianism is not only a theory about tax rates. It is a much broader account of what the state may and may not do.

Milton Friedman is introduced as an ally on the question of paternalism. Social Security may be prudent, even highly prudent, but on this view prudence is not enough to justify coercion. If people

wish to save for retirement, they should do so; if they prefer to live lavishly now and risk a poor retirement later, that too should be their choice. The point is not that one choice is wise and the other foolish. The point is that the state may not force the choice.

The Salem Fire Corporation anecdote serves the same reprising function from a different angle. We are often told that collective goods such as police and fire protection must be publicly provided because otherwise free riders cannot be controlled. Sandel uses the private fire-company story to show how a libertarian might deny that inevitability. The company responds only to subscribers, or to fires threatening subscribers. A house can burn while the trucks stand by, because if the company extinguished every fire there would be no incentive to subscribe. Sandel does not present this as a theorem; he presents it as a stress test for our assumptions about public goods.

From there the lecture returns to the classroom in a more organized way. Team Libertarian is assembled, and Sandel states the objections in order. The poor need the money more. Taxation in a democracy is not slavery because it is authorized by consent of the governed. The successful owe a debt to society that is properly repaid by taxation.

The reply to the first objection is the stable core that survives the corrupted transcript: even if Bill Gates may choose to give voluntarily, coercive redistribution still violates property rights on the libertarian view. Julia sharpens that reply by distinguishing need from desert. Need may be urgent and morally important, but it does not by itself show entitlement to another person's holdings. That contrast can be kept in view schematically as

$$\text{Need} \neq \text{Desert}, \quad (3.17)$$

$$\text{Need help} \not\Rightarrow \text{entitled to another's holdings}. \quad (3.18)$$

The Katrina case is then used to press this distinction. Julia concedes the urgency of need while maintaining that need and desert are not the same category.

The second objection turns on democracy. Raul argues that property rights are enforced by democratic government, and so taxation under those rules is legitimate rather than coercive. John replies in rough numerical terms that redistribution becomes the middle deciding what the top will do for the bottom. Alex then gives the more philosophically important answer: having a tiny share in an election is not the same as exercising personal control over one's own labor and property. One may vote and still lose. Consent through a vast representative machinery is not, on this view, equivalent to self-direction.

Sandel pushes this objection hard, and the exchange improves. Must not a democrat accept majority rule? Alex's reply is not to reject democracy wholesale, but to restrict its scope. Fundamental rights should not be put to a vote. Sandel then supplies the telling analogy: if religious liberty were at stake, we would hesitate to let a majority abolish it. The libertarian therefore tries to assimilate rights of property and earnings to the same family of rights as free speech and religious liberty.

The third objection is that the successful owe a debt to society. Julia answers that the successful became successful precisely by doing something society valued highly, and that they have already been paid through the voluntary exchanges that made them rich. Sandel makes the Michael Jordan case concrete: coaches, teammates, teachers, and spectators all matter, but they have already been compensated or have already received the entertainment and satisfaction for which they paid. The repeated transcript line about society's pleasure in watching Jordan is best compressed into one clean point: on the libertarian reply, the service has already been rendered and rewarded.

At this point Victoria raises the deepest objection of the lecture. Maybe, she suggests, we do not own ourselves after all. Living in society already places limits on what we may do. One cannot

simply invoke self-possession as if the presence of others changed nothing. That objection does not merely dispute one tax policy. It questions the premise that holds the entire libertarian edifice together.

3.7.1 Question & Answer

If living in society already limits what we may do, do we really own ourselves in the strong libertarian sense?

Sandel does not answer this by returning to utilitarianism. He treats it as the decisive philosophical hinge. If self-possession fails, then the libertarian argument against redistribution loses its deepest support. But if we abandon self-possession too quickly, we risk sliding back toward a view in which persons may once again be used for aggregate welfare. The lecture therefore ends not with closure but with displacement. The argument must now be carried to a deeper source.

That source is Locke. Sandel closes by sketching the chain Nozick inherits:

self-possession $\rightarrow$ ownership of labor $\rightarrow$ mixing labor with unowned things $\rightarrow$ private property. (3.19)

The point of the chapter's ending is not to settle the matter but to show exactly why the next lecture has to be about Locke. If self-ownership is the premise, then the next task is to test that premise where it first receives its classical philosophical form.

3.8 Summary

This lecture begins with Mill and ends with Locke, but the movement is continuous. We start from Mill's attempt to repair utilitarianism, first with higher pleasures and then with rights. We then see why Sandel thinks the long-run utilitarian defense of rights is unstable: it may fail in hard cases, and even when it succeeds it may still offer the wrong kind of reason. That pressure opens the way to libertarianism as a stronger theory of rights.

Once libertarianism appears, the lecture proceeds in a deliberate sequence. Liberty is translated into a view of the state. Redistribution is then tested by a historical account of justice rather than a patterned one. Gates and Jordan make the stakes numerically vivid. Nozick pushes the argument from theft to forced labor and from forced labor to slavery. The later classroom debate then reveals where resistance gathers: need, equality of opportunity, democratic consent, debt to society, and finally the premise of self-possession itself.

So the lecture ends where it should: not with a verdict on tax policy, but with a deeper question. Do we own ourselves? Sandel leaves that question suspended and turns us toward Locke, because the answer to it will determine how much of the libertarian case can stand.

Chapter 4

This Land Is My Land

These companion notes follow Michael Sandel's fourth lecture in the *Justice* course, as curated in the LazyLearn track by LazyingArt LLC. The lecture is organized as a controlled reversal. At first Locke looks like a powerful ally of libertarianism: he affirms natural rights to life, liberty, and property, and he insists that these rights do not depend on government for their existence. But as Sandel unfolds the argument, that first impression becomes harder to sustain. We move from natural rights to the state of nature, from the state of nature to property, from property to consent, and finally to the question that the lecture leaves open: what, exactly, can consent justify?

4.1 Locke as the Apparent Libertarian Ally

Sandel opens with a clean and strategic framing. On the face of it, Locke is a powerful ally of the libertarian. He believes that there are fundamental individual rights that no government may override, not even a representative or democratically elected one. The rights at issue are the familiar Lockean triad:

$$R_{\text{nat}} = \{\text{life, liberty, property}\}. \quad (4.1)$$

The point is not merely that these rights are important. It is that they are natural. In particular, Locke's right to property is not treated as the product of legislation:

$$\text{property is a natural right} \implies \text{property is pre-political in principle}. \quad (4.2)$$

That is the lecture's opening pressure point. If property is not simply created by law, then we must be able to say what it means before legislatures, courts, and governments arrive on the scene. Sandel therefore moves immediately to the thought experiment that makes Locke's whole view intelligible: the state of nature.

4.2 State of Nature: Liberty, Not License

The state of nature is not introduced as a chaotic historical episode. It is introduced as a conceptual setting in which we can ask what a natural right would be if there were no enacted law to define or enforce it. Locke says that the state of nature is a state of liberty, and Sandel is careful to add the

corresponding claim that human beings in that condition are free and equal. There is no natural hierarchy: some are not born kings while others are born serfs.

But the lecture's first real distinction appears as soon as that point is made:

$$\text{State of Nature} = \text{Liberty} \neq \text{License}. \quad (4.3)$$

This is not merely a verbal refinement. It is the first formal obstacle in the lecture. If the state of nature is a state of liberty, why is it not a state of unrestricted permission? Sandel answers: because even in the state of nature there is a law, though not a humanly enacted one. There is a law of nature.

4.2.1 Question & Answer

Question. If we are free and equal in the state of nature, why are we not free to do whatever we want?

Answer. Because freedom here means the absence of natural masters, not the absence of all norm. The law of nature constrains action before there is legislation. Sandel compresses the constraint into two paired prohibitions:

$$\neg \text{Alienate}(R_{\text{nat}}(x)) \quad \text{and} \quad \neg \text{Violate}(R_{\text{nat}}(y)). \quad (4.4)$$

In plain language, we may neither give up our own natural rights nor take those of another. That is why the lecture can say, without contradiction, that we are free and yet are not free to kill, enslave, or subject either ourselves or others to arbitrary absolute power. The state of nature is morally structured from the start.

4.3 Unalienable Rights and Their Two Foundations

Once liberty has been distinguished from license, Sandel asks the next question in the lecture's own order: where does the constraint come from? Locke offers two answers, and Sandel preserves their sequence.

The first answer is theological. Human beings are the workmanship of God. So the reason we cannot simply dispose of our lives and liberties at will is that they are not fully ours in the first place. As a compact summary,

$$\text{God's prior property right in us} \succ \text{our discretionary power over ourselves}. \quad (4.5)$$

This is already enough to explain why self-sale into slavery, self-destruction, or the surrender of arbitrary power over oneself is forbidden. But Sandel does not allow the argument to rest there. He immediately asks what Locke can say to those who do not begin from theology, and that turns the lecture toward reason.

The second answer is rational rather than theological:

$$\text{Reason} = \text{Law of Nature}, \quad (4.6)$$

$$\forall x \neq y, \quad x \text{ ought not harm } y \text{ in life, health, liberty, or possessions}. \quad (4.7)$$

We should read this as a compact summary of the lecture, not as a literal line of formal notation in Locke. Its force is nonetheless exact. Proper reflection on what it means to be free leads us away from the idea that freedom is just doing whatever we want and toward the idea of a law that binds equals as equals.

This is also where Sandel introduces the paradox of unalienability. The airline-ticket analogy does real philosophical work. A non-transferable ticket is, in one familiar sense, less fully mine because I cannot sell or trade it. But a right can be unalienable in a deeper sense: so essentially mine that even I cannot give it away. That is Locke's sense of the term, and Sandel explicitly connects it to Jefferson's use of unalienable rights in the Declaration of Independence.

At this point in the lecture Locke begins to move away from the libertarian. If rights are truly natural, then taking them seriously does not yield absolute self-ownership. It yields the claim that some of the things most truly ours are precisely the things we may not dispose of at will.

4.4 Property Before Government: From Person to Labor to Land

And yet the lecture does not stay there. Sandel now turns to the issue on which Locke begins to look like a plausible libertarian ally again: private property. The key question is not whether life and liberty can be natural rights. It is whether private property can arise even before government exists to define or enforce it.

Locke's answer in Section 27 starts from the person and moves outward:

property in person $\rightarrow$ property in labor $\rightarrow$ mix labor with unowned things $\rightarrow$ private property.
(4.8)

This is the central constructive chain of the lecture. The important thing is that Sandel unfolds it step by step rather than presenting it as a slogan.

Worked derivation.

1. Every person has a property in his own person.
2. The labor of his body and the work of his hands are therefore properly his.
3. Let o be something unowned and left in common.
4. Once labor that is already mine is mixed with o , the object is no longer simply where nature left it.
5. Because the labor is unquestionably the laborer's own, what is joined to it may become the laborer's property.

In schematic notation we may write:

$$o \in U, \quad \text{Mix}(L_x, o) \implies o \in P_x, \quad (4.9)$$

where U is the common stock of unowned things, L_x the labor of person x , and P_x what belongs to x . This is cautious editorial shorthand, but it captures the structure Sandel is extracting from Locke.

A worked example. Suppose an apple lies in the common stock U . If person x picks it, then the apple is no longer merely where nature left it. It has been joined to labor that already belongs to x . In that simple case, the apple may become x 's property.

But Locke wants more than the apple case. He wants the stronger land case. If a parcel is tilled, planted, improved, cultivated, and enclosed, then the claim extends beyond the crop to the land itself:

$$\text{till} + \text{plant} + \text{improve} + \text{cultivate} \implies \text{property not only in crop but in land.} \quad (4.10)$$

This is why the argument is controversial. The move from apples and acorns to land is not a minor extension. It is a qualitative increase in the strength of the claim.

Locke's argument is not, however, unrestricted. Sandel emphasizes the proviso:

$$\text{valid appropriation} \implies \text{"enough and as good" left for others.} \quad (4.11)$$

So the lecture's constructive chain has a clear internal discipline. Labor can ground appropriation, but appropriation is valid only under a condition that keeps the common world from being exhausted by a first claimant.

4.4.1 Question & Answer

Question. How can private property arise before government or consent?

Answer. Locke's answer is that the original act of appropriation does not require prior agreement. The relevant moral bridge is labor. We begin with property in the person, pass from person to labor, and then treat labor mixed with the unowned as sufficient to generate ownership. Consent enters later, not to create the very possibility of property, but to create the political order in which property is defined, stabilized, and adjudicated.

4.5 Testing Locke's Property Argument: Patents, Colonization, and Common Use

Sandel does not let the labor theory remain an elegant abstraction. He tests it twice, first with a modern case and then with a historical objection.

The modern case is the dispute over drug patents during the AIDS crisis in South Africa. Western governments and pharmaceutical companies argue that research, ingenuity, and investment create a legitimate claim over the resulting drug. The South African government replies that generic versions could save lives at a tiny fraction of the cost. The case matters in the lecture because it keeps alive the intuition that labor or creation can generate ownership while also showing that property claims do not float free from human consequences.

Sandel then makes a striking suggestion. Among nations, where there is no single settled law of patents and property, the dispute looks in one respect like a frontier case, almost a last remnant of the state of nature. The point is not that intellectual property works exactly like land appropriation. It is that before settled rules exist, the question of property remains morally and politically open.

From there the lecture turns to the classroom challenge about Native Americans and European settlement. Rochelle's objection is the crucial one: if Locke's argument is sound, then it may justify colonial appropriation; if it is unsound, then it functions as a rationalization for it. Sandel deliberately sharpens the dilemma rather than softening it.

The replies stay within Locke's framework. Dan notes that use itself may count as labor. If picking an acorn or killing a buffalo is enough to ground a claim, then Native American patterns of use may already amount to a property claim. Fang adds the second pressure point: common use and the proviso. If land is used in common, and if valid appropriation requires enough and as good to remain for others, then easy colonial enclosure becomes harder to defend.

Sandel does not tie this up neatly, and he should not. The point of the exchange is to show that Locke's account of original acquisition is strongest precisely where it becomes morally most suspect. That is the point at which the lecture turns. If property is natural rather than conventional, what becomes of that right once we enter society? That question leads from property to consent.

4.6 Consent as the Second Big Idea

After a brief editorial reset in the broadcast, Sandel explicitly says that consent is Locke's second big idea. He even reminds us that consent has been hovering over the course from the beginning: it appeared in the discussion of pushing the fat man, and again in the discussion of the cabin boy. So by the time we arrive at Locke, consent is already familiar. The philosophical work of the lecture is to make it strange again.

To do that, Sandel returns us to the state of nature. Why leave it at all? Locke's answer is not that the state of nature lacks rights. It is that the enjoyment of those rights is insecure because everyone may enforce the law of nature for himself or herself. Everyone is an executor of the state of nature, and because each person becomes judge in his or her own case, punishment overshoots.

The lecture's transition is therefore:

everyone enforces law of nature $\rightarrow$ punishment overshoots $\rightarrow$ insecurity $\rightarrow$ consent to civil society. (4.12)

What is surrendered when we consent is not the rights themselves but the private power to enforce them:

consent $\implies$ surrender private enforcement power, not $\implies$ surrender natural rights. (4.13)

4.6.1 Question & Answer

Question. If natural rights remain in force, what exactly does consent authorize the majority to do?

Answer. Consent authorizes the formation of a political community with law, legislature, and majority decision. It explains why we leave the state of nature and why we accept a standing authority in place of private enforcement. But it does not, by itself, explain how far that authority may go. Natural rights do not disappear when civil society begins, and that is why the lecture's second half takes the form of a puzzle rather than a simple vindication of majority rule.

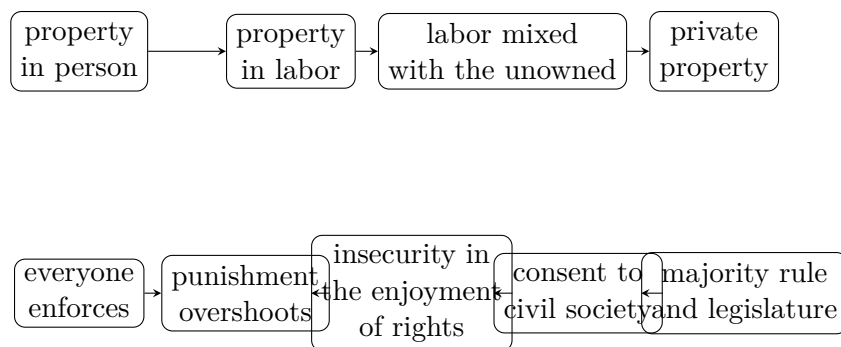


Figure 4.1: A note-native reconstruction of the lecture's two central chains: appropriation through labor and the transition from private enforcement to civil society.

4.7 Taxation, Implied Consent, Conscription, and Locke's Limits

Once civil society has been formed, Sandel presses the central question: what can the majority actually decide? At first Locke still seems friendly to libertarian hopes. If natural rights persist into civil society, then no parliament or legislature, however democratic, can legitimately violate them. Sandel deliberately lets that thought arise and then warns us not to be too quickly reassured.

The reason appears when he turns to Locke's own text on taxation. The sharp contrast is this:

$$\text{no taking of property without consent} \quad \text{vs.} \quad \text{his own consent} = \text{consent of the majority.} \quad (4.14)$$

That is the pressure point of Sections 138 and 140. On the one hand, Locke says the legislature cannot take property without consent. On the other hand, when he explains taxation, he says that the relevant consent is majority consent, given directly or through representatives.

Sandel's reconstruction of the tension is especially careful here. Locke sometimes uses "property" broadly, almost as a global name for life, liberty, and property together. But he also says that in society people possess the goods that are theirs *by the law of the community*. Hence the lecture's two-level distinction:

$$\text{property as an institution is natural,} \quad \text{what counts as mine is conventionally defined.} \quad (4.15)$$

This is the point where the notes must not become too textbook-like. Sandel is not simply classifying property into two philosophical species. He is trying to make sense of an apparent contradiction in Locke. The institution of property limits government. But the specification of holdings is a matter for law. So the natural right is not a guarantee that each existing holding stands outside political definition. It is a guarantee against the destruction of the institution and against arbitrary seizure.

4.7.1 Question & Answer

Question. Can those who never explicitly consented still be bound by government and taxation?

Answer. Locke seems forced toward a combination of collective and tacit consent. Collective consent enters when a people leaves the state of nature and agrees to majority rule. Tacit or implied

consent enters when those born into an existing society accept its protections and continue to live under its institutions. Sandel does not present this as a clean solution. The student exchange is important precisely because it shows how weak the appeal to implied consent can sound once explicit agreement has disappeared.

The Nicola exchange makes the problem vivid. If someone obeys the law only for prudential reasons, because she does not want to be caught, then the moral force of consent seems to vanish. The reply offered in class is itself revealing: perhaps one cannot reject obligation while still taking the benefits of public order. One may try to return to the state of nature, but then one cannot keep driving on Mass Ave. That is not a decisive solution; it is evidence of how unstable the consent argument becomes at this point in the lecture.

The pressure then rises once more, from property to life itself.

4.7.2 Question & Answer

Question. If rights are unalienable, how can anyone be bound by taxation or conscription under majority rule?

Answer. This is the deepest local obstacle in the lecture. If I cannot sell myself into slavery or consent to my own destruction, how can I be said to have consented to a law that taxes my property or may compel me into military service? Sandel's likely Lockean answer turns on one final distinction:

$$\text{arbitrary taking} = \text{illegitimate}, \quad \text{general non-arbitrary law} \neq \text{arbitrary taking}. \quad (4.16)$$

On this reading, the true object of Locke's hostility is arbitrary power. What government may not do is single out Bill Gates to finance a war, or pick some particular citizen at pleasure to surrender his liberty or life. A general law, enacted through fair procedures and applied by standing rules, does not count as the same sort of violation. That is why Sandel takes Gokul's intervention so seriously: the difference between arbitrary choice and general law may be Locke's only escape.

This answer is intelligible, but it comes at a price. It means that unalienability does not yield absolute self-ownership, and it means that consent, once joined to general law, authorizes more than libertarians would like:

$$\text{unalienable rights} \implies \text{self-ownership is not absolute}, \quad (4.17)$$

$$\text{consent} + \text{general law} \implies \text{government may be less limited than libertarians hope}. \quad (4.18)$$

This is Sandel's final verdict on Locke as an ally of libertarianism. The libertarian is disappointed twice: first because natural rights are unalienable and therefore not fully disposable, and second because a legitimate government acting through non-arbitrary general law may still tax, regulate, and conscript.

The lecture then darkens one last time. Locke, the great theorist of consent, also produced a theory of private property that did not require consent at all. And when he says that "all the world was America," Sandel invites us to hear the colonial background of the theory itself: enclosure, settlement, and war with Native Americans were not accidental illustrations. They may have been part of the work the theory was built to do.

4.8 Summary

Sandel begins by making Locke look like the libertarian's philosopher and ends by showing how unstable that appearance is. Natural rights are prior to government; the state of nature is a state of liberty but not license; and the law of nature constrains us first through divine workmanship and then through reason. Private property arises through the chain from person to labor to appropriation, but only under the proviso that enough and as good remain for others. Consent then enters as the mechanism by which we escape the insecurity of private enforcement and create civil society under majority rule.

But once taxation, implied consent, and conscription enter the picture, the theory changes shape. Locke limits arbitrary power, not government as such. That is why the lecture closes without full resolution. Consent plainly matters, but it does not explain everything, and it does not settle every burden that political life may impose. Sandel leaves us with that unfinished question and carries it forward to the next lecture, where the problem of consent moves from government to markets.

Chapter 5

Hired Guns

This lecture resumes the argument exactly where the previous one stopped. If government rests on consent, what are the limits on what even a majority may rightly authorize? Sandel sharpens that question by moving from property to life, then from political authority to military recruitment, and finally from military service to reproduction and surrogacy. The argument unfolds in pairs: taxation and conscription, draft and market, coercion and commodification, use and higher modes of valuation. By the end of the lecture we have not solved the problem of consent, but we have learned how to ask it more carefully.

5.1 From Taxation to Conscription

Sandel begins with Locke's view of taxation. A democratically elected government may tax for the common good, and this does not require the present consent of each individual at the moment the tax is enacted or collected. What matters is the prior act of joining political society and accepting the authority of majority rule.

$$\text{prior consent to join political society} \implies \text{being bound by majority rule} \quad (5.1)$$

This is the point from which the lecture departs. Once taxation is granted, the harder case comes into focus. If the state may take property without fresh individual consent, may it also conscript citizens and command them to risk their lives? That question seems to press directly against the idea that we own ourselves.

$$\text{taxation without fresh individual consent} \not\Rightarrow \text{conscription is illegitimate} \quad (5.2)$$

So the inquiry changes register. We are no longer asking only what government may tax. We are asking whether consent can ground an obligation that reaches as far as military service and the risk of death.

5.2 Arbitrary Power and the Lockean Limit

Locke's answer, as Sandel presents it, is surprisingly strong. Yes, government may conscript, provided its authority is not arbitrary. The decisive distinction is not between command and non-command, but between rightful law and corrupt will.

$$\text{legitimate authority} \implies \text{non-arbitrary rule of law} \quad (5.3)$$

Sandel's favored illustration is Locke's example of the sergeant and the soldier. A sergeant may order a soldier toward the cannon, where death is nearly certain. A general may punish desertion with death. Yet neither officer may arbitrarily take a penny from the soldier's purse. Power over life and death can belong to military office; arbitrary seizure cannot.

$$\text{command a soldier into danger may be legitimate,} \quad (5.4)$$

$$\text{take a penny arbitrarily is corrupt.} \quad (5.5)$$

The point is not that consent dissolves all limits. The point is that consent creates political obligation in a form already structured by the rule of law. Government remains limited, but it is limited chiefly by the requirement that it govern through general, non-arbitrary law.

5.2.1 Question & Answer

Question. If we own ourselves, how can government ever command us to fight?

Answer. Sandel's Lockean answer is that the morally decisive consent is not consent to each tax or each military order taken one by one. It is the prior consent to enter political society and to be bound by lawful authority. Self-possession therefore does not by itself exclude conscription. What excludes a command is arbitrariness, not merely its seriousness.

Sandel closes this opening movement by asking why consent should be such a powerful moral instrument in the first place. Rather than answer abstractly, he turns to a concrete case: military recruitment in wartime.

5.3 Recruitment Options and the Civil War Hybrid

The contemporary setting is the Iraq war. Suppose the United States cannot meet its recruitment targets. What should it do? Sandel lays out three possible responses. The accepted classroom slide shows the first two; the transcript immediately adds the third.

The slide itself displays only the first two items:

1. Increase pay and benefits.
2. Shift to military conscription (a draft).

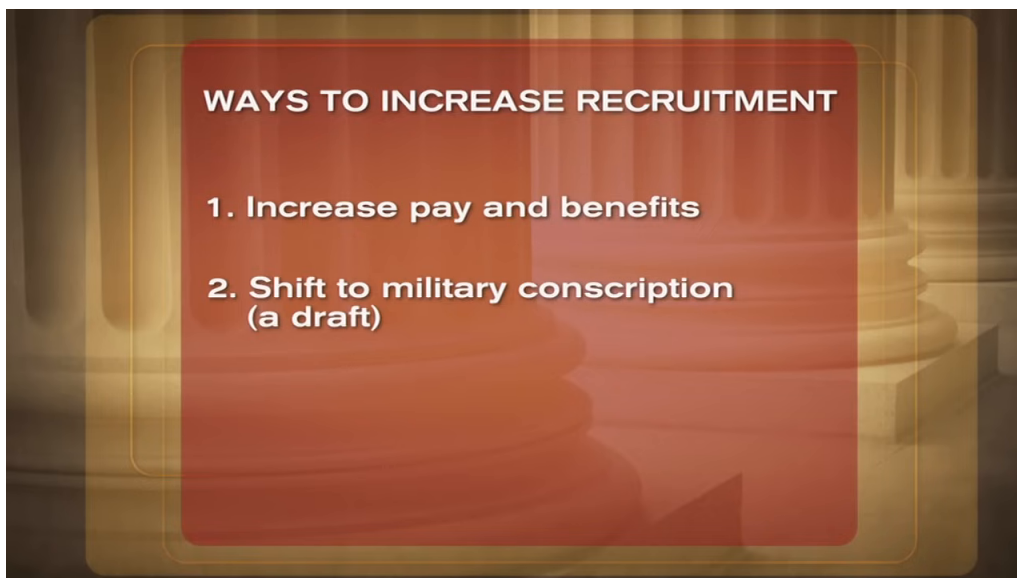


Figure 5.1: Recruitment options: higher pay or a draft. The third option, outsourcing, is supplied by the spoken continuation rather than the slide itself.

The transcript then completes the decision set by adding outsourcing to mercenaries. In note form we can write the full menu as

$$\text{recruitment shortfall} \Rightarrow \begin{cases} \text{increase pay and benefits,} \\ \text{conscription by lottery,} \\ \text{outsource to mercenaries.} \end{cases} \quad (5.6)$$

Sandel immediately polls the room. A large majority favor higher pay, only a handful favor conscription, and a noticeable minority are drawn to outsourcing. This matters because the lecture is not content to classify opinions. It asks what principle would justify any of these choices.

To sharpen the issue, Sandel inserts an intermediate case from American history: the Civil War draft with a buyout provision. One begins with conscription, but a draftee may hire a substitute to fight in his place. The market enters not at the edge but inside the draft itself.

$$\text{conscription} \rightarrow \text{Civil War buyout} \rightarrow \text{all-volunteer army} \rightarrow \text{outsourcing} \quad (5.7)$$

This progression is a reconstruction of the lecture's logic. It shows the pressure of the argument: once we allow money to reallocate military risk, how far should that principle be permitted to run?

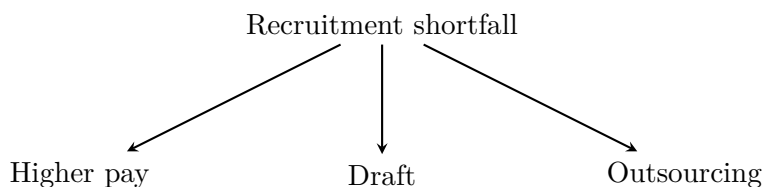


Figure 5.2: Transcript-backed reconstruction of the lecture's recruitment decision tree.

The Civil War system is the perfect stress test because it is both coercive and marketized. It lets Sandel ask not only who serves, but what kind of good military service is.

5.4 Coercion, Inequality, and the All-Volunteer Army

The first objection surfaces gradually. Liz says the buyout provision puts a price on human life. Jason responds with the libertarian reply: no one is forced to accept the money; if someone sets his own price for risk, why should that be unjust?

Sandel then draws out the deeper criticism from Sam and Raul. The issue is not merely that money changes hands. The issue is that unequal background conditions can make the apparently voluntary exchange only partly free.

As a note-native shorthand, we can express the structure this way:

$$\text{free consent} = \text{voluntariness} + \text{adequate information} \quad (5.8)$$

What Sam and Raul emphasize is the first term. Under conditions of severe inequality, the poor laborer who accepts money to serve in another man's place may be "choosing," but he is choosing under pressure created by circumstance rather than by law alone.

$$\text{severe background inequality} \implies \text{apparently voluntary exchange may be partly coercive} \quad (5.9)$$

Sandel's example makes the asymmetry vivid. For Carnegie the price of substitution is trivial; for a poor laborer the same payment can be decisive. The same market price has different moral significance because it lands within different social situations.

Worked example. The objection can be written as a short derivation:

$$\text{equal draft liability} \implies \text{buyout option}, \quad (5.10)$$

$$\implies \text{military burden reallocated by wealth}, \quad (5.11)$$

$$\implies \text{the poor sell risk under economic pressure}, \quad (5.12)$$

$$\implies \text{the resulting consent is only partly free}. \quad (5.13)$$

Emily then performs the decisive move of the first half of the lecture. Even if we grant the coercion objection in the Civil War case, why does it not also trouble us about the all-volunteer army? Military recruitment today, too, falls disproportionately on those with fewer economic opportunities. Sandel reinforces her point by asking for a quick show of hands about military service in the students' own generation. The result supports the claim that service is not socially distributed at random.

5.4.1 Question & Answer

Question. When does a voluntary exchange stop being fully free because inequality is doing the work?

Answer. The lecture does not give a numerical threshold. It gives a structural test. A voluntary exchange ceases to be fully free when the background distribution of opportunity is so unequal that one side enters the bargain because its alternatives are unacceptably narrow. The form of consent remains, but the substance is compromised.

This is already a powerful argument, but Sandel does not stop there. He allows the discussion to shift from coercion to a different question altogether.

5.5 Patriotism, Civic Obligation, and Market Allocation

Once Emily extends the inequality objection to the all-volunteer army, another line of criticism emerges. Perhaps the problem with paying for military service is not only that it exploits inequality. Perhaps military service is the wrong kind of good to allocate by market exchange.

Jackie argues that patriotism is a better motive than money. Philip replies that mercenaries can fight effectively even without patriotic attachment. Sandel's intervention clarifies what is really at issue. The term "all-volunteer army" is, he notes, a kind of misnomer. In practice it is a paid army. So if patriotism should be primary, are we defending the current system, or does that thought push us back toward conscription?

The lecture now separates two objections that had been intermixed in the classroom exchange:

$$\text{objection}_1 = \text{coercion under inequality}, \quad \text{objection}_2 = \text{civic obligation} / \text{patriotism} \quad (5.14)$$

The first objection says that the market may fail to secure genuinely free exchange. The second says that military service may be bound up with citizenship in a way that makes market allocation unfitting even if the exchange were fully voluntary.

Sandel also shows how these lines of thought pull in opposite directions. If we follow the logic of market choice consistently, the path runs from conscription to buyout to a paid army and perhaps onward to outsourcing. If, however, patriotism and civic obligation really count for something, then perhaps the market has already gone too far.

At that point Sandel steps back and names the two philosophical questions that the debate has produced:

$$\text{Question 1: what inequalities undermine free labor exchange?} \quad (5.15)$$

$$\text{Question 2: what are the obligations of citizenship?} \quad (5.16)$$

He does not answer either question here. He deliberately leaves them open and carries them into the next domain.

5.6 From Military Service to Markets in Reproduction

The bridge to the second half is perfectly characteristic. Sandel asks whether one should be able to bid for a baby that is up for adoption. The point is not to start a new lecture. The point is

to transport the same logic of consent, exchange, and valuation into a domain where our moral intuitions are even less at ease.

He first considers markets in eggs and sperm. A newspaper advertisement seeks not merely any egg donor but one with specified traits and offers an enormous financial inducement, on the order of \$50,000, for the right donor. On the sperm side, California Cryobank pays donors per specimen, up to a monthly ceiling, while openly recruiting the traits its customers prefer. The transcript's numerical details are secondary to the structure: reproductive capacities are being priced, screened, and marketed.

Sandel's phrasing is pointed. This is a market in reproductive capacities. And once that is said, the question is no longer merely legal or medical. Should eggs and sperm be bought and sold for money at all? Before the class can settle that question, Sandel introduces the more difficult case of commercial surrogacy, where contract, pregnancy, attachment, and money all converge.

5.7 Surrogacy, Contract, and the Limits of Market Reason

The Baby M case begins in contractual form. The Sterns want a child. Mary Beth Whitehead agrees to be artificially inseminated with William Stern's sperm, to carry the child, and then to surrender the baby for a fee plus expenses.

$$\text{payment} + \text{artificial insemination} + \text{birth} \implies \text{transfer of child to the Sterns} \quad (5.17)$$

The first argument Sandel elicits is the contractarian one. Patrick says, in effect, that a deal is a deal. If competent adults knew the terms and agreed voluntarily, the contract should be enforced. Sandel lets that position stand clearly before turning to the objections.

Evan introduces the first objection. Even if the agreement was voluntary, it may not have been informed. Before the child exists, the mother cannot know how she will feel about the child she bears. That means the relevant information was unavailable at the moment of agreement.

$$\text{consent can fail through coercion} \quad \text{or} \quad \text{consent can fail through inadequate information} \quad (5.18)$$

$$\text{pre-birth consent} \not\Rightarrow \text{fully informed consent} \quad (5.19)$$

Anna adds a stronger appeal to the natural bond between mother and child. Kathleen replies by restoring the strict contractual frame: later feelings do not undo a bargain. Then Andrew introduces the second objection, and with it the lecture's deeper unease. The issue, he says, is not only information. It is that surrogacy begins to look like baby-selling, or at least like the sale of a mother's right to her child.

5.7.1 Question & Answer

Question. Can a surrogacy contract be fully voluntary if the mother cannot yet know the bond she will form with the child?

Answer. Sandel’s answer is that voluntariness and informedness must be distinguished. A contract can be entered without overt coercion and still fail to count as fully free if the relevant knowledge is unavailable at the moment of agreement. In the surrogacy case, the court’s concern is precisely that the mother is asked to commit herself irrevocably before she can know the force of the attachment pregnancy may create.

Vivian’s comparison between sperm donation and surrogacy deepens that point. The biological bond and the temporal labor of pregnancy, she argues, cannot be assimilated to sperm donation. The goods are not equal because the forms of human involvement are not equal.

Sandel then moves from classroom exchange to legal reasoning. The lower court treated the contract as enforceable: a bargain was struck, neither party had a superior bargaining position, and no one forced the other. The New Jersey Supreme Court, however, refused to enforce it. The stable structure of the court’s reasoning follows the two objections already heard in the room: insufficiently informed consent and commodification.

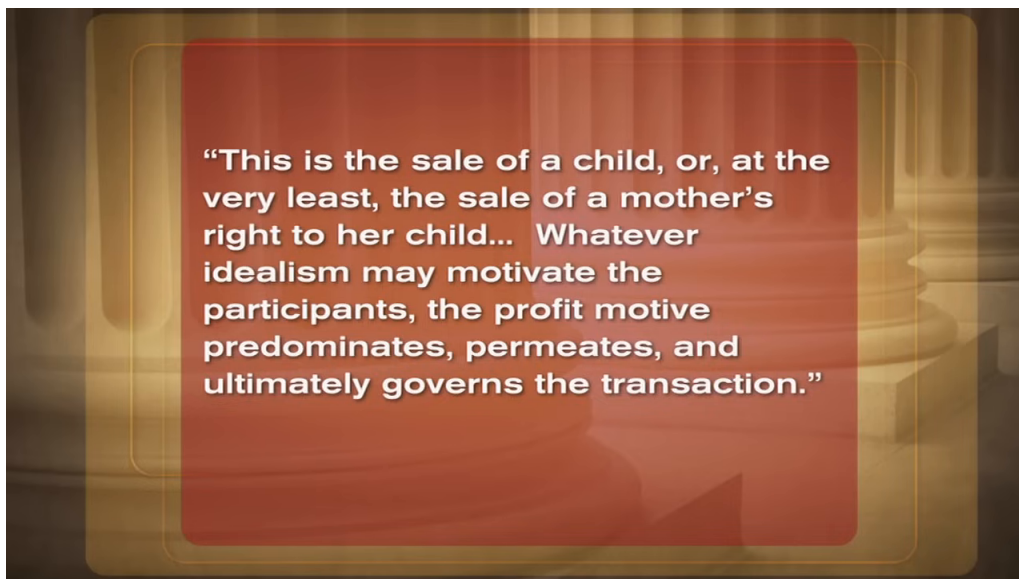


Figure 5.3: Quote framing the commodification objection to surrogacy.

The slide preserves the moral temperature of the second objection. Rather than reproduce the full quotation in the text, we can extract its argumentative core:

$$\text{profit motive predominates and ultimately governs the transaction} \quad (5.20)$$

That lets us summarize the court’s two-part structure cleanly:

$$\text{objection}_1 = \text{tainted consent}, \quad \text{objection}_2 = \text{commodification / dehumanization} \quad (5.21)$$

The second objection is harder to state precisely, and Sandel says so. Its claim is not simply that one side lacked information. It is that some goods are degraded when they are treated as items for use and profit. To clarify that thought, he turns to Elizabeth Anderson. Her proposal is that surrogacy contracts can transform pregnancy into alienated labor by requiring the mother to divert or repress the very attachment pregnancy ordinarily fosters.

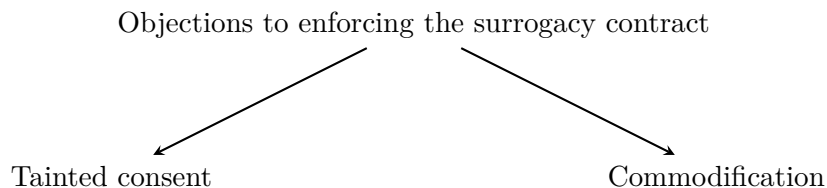


Figure 5.4: A note-native reconstruction of the lecture's two-part analysis.

$$\text{surrogacy contract} \implies \text{alienated labor} \quad (5.22)$$

From there the lecture opens outward. The problem is no longer only surrogacy. It is whether some goods are properly valued in modes other than use and price.

$$\text{some goods are not properly valued merely by use or price} \quad (5.23)$$

Anderson's vocabulary gives Sandel a compact way to name those alternative modes of valuation:

$$V_{\text{non-market}} = \{\text{respect, appreciation, love, honor, awe, sanctity}\} \quad (5.24)$$

The closing example of Cecil Jacobson reinforces the same distinction. One can condemn him for failing to inform the women he treated; that is the consent objection. But Ellen Goodman's line that fatherhood should be something one does, not something one donates, points toward the deeper question: are there goods whose meaning is damaged when they are translated into market terms? That question carries the lecture to its endpoint.

5.8 Summary

The lecture begins by testing Locke at his strongest point. If prior consent can authorize taxation, can it also authorize conscription? Locke's answer is yes, so long as political and military power are not arbitrary. Sandel then turns that abstract answer into a concrete argument about recruitment, where the market enters and complicates consent. From the Civil War buyout system to the paid army and outsourcing, we are forced to distinguish between exchange that is formally voluntary and exchange that is genuinely free.

The second half repeats the same structure in a more intimate setting. In surrogacy, consent may be flawed not because of overt coercion but because crucial information is unavailable before birth. And beyond the problem of consent lies the harder issue of commodification: whether some human goods are not properly valued as objects of purchase. The lecture therefore leaves us with two persistent questions. When is consent morally sufficient? And what kinds of goods are corrupted when market reasoning becomes their governing logic? Sandel does not close those questions here. He leaves them alive for the lectures to come.